

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 25835 of 2023

Md. Edi Amin

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. S.S. Arefin Jannun, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 28.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Kotwali Police Station Case No. 33 dated 20.11.2022 corresponding to G.R. Case No. 383 of 2022 under Sections 6(2)/8/10/12 of the Santrash Birodhy Ain, 2009, now pending in the Court of learned Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that on 20.11.2022 a team of terrorists of Ansar Al Islam forcibly snatched two members of above organization namely Moinul Hasan Shamim @ Shifat @ Samim @ Imran and Md. Abu Siddique Sohel from the premises of the Dhaka Metropolitan Magistrate Court while they were brought to produce above in Court in connection of other criminal cases. In the ejahar of above case the name of the petitioner is stands serial No. 13. It has been alleged that the petitioner is a member of the proscribed militant organization Ansar Al Islam and he participated in the commission of above offence.

Mr. S.S. Arefin Jannun, learned Advocate for the petitioner submits that within 07(seven) days of lodging of the ejahar of this case the petitioner voluntarily surrendered in Court. In this case co-accused namely 1. Boktiyar Rahman Nazmul, 2. Hosna Akter Hosna, 3. Khodeza Akter Lipi, 4. Md. Tanvir Hossain, 5. Tanzil Afroz Jahan, 6. Nasir Miah and 7. Omar Faruk Talukder have already been granted bail. The petitioner is in custody in connection of this case about one and half years but the investigation has not yet been concluded.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection in granting bail at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from record that the name of the petitioner stands at serial No. 13 of the FIR and he voluntarily surrendered in this case on 27.11.2022. No incriminating material was recovered from the possession of the petitioner. Other co-accused standing on the same

footing have been granted bail earlier. The petitioner is in custody for about one and half years but the investigation of this case has not yet been concluded.

On consideration of above materials on record, we are inclined to grant bail of the petitioner.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Md. Edi Amin, son of late Ruhul Amin be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Dhaka.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.